

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Nathaniel Parks

Plaintiffs

-against-

The City of New York; Esteban Abreu, in
his individual capacity, Henry Adamas in
his individual capacity, Edward McClain,
in his individual capacity, Jane Doe, in her
individual capacity,

Defendants

ECF CASE

AMENDED
COMPLAINT AND DEMAND
FOR JURY TRIAL

10 Civ. 6020 (GBD)

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §1983 for the Defendants' commissions of acts under color of law in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the State of New York.

JURISDICTION

2. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

3. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343 (3) and (4).

VENUE

4. Venue is proper pursuant to 28 U.S.C. § 1391 (b) in that, *inter alia*, the events

giving rise to the claim occurred in the Southern District of New York.

JURY DEMAND

5. The Plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

6. Plaintiff NATHANIEL PARKS was and is a resident of New York City.

7. Defendant THE CITY OF NEW YORK (the “City”) is a municipal corporation within the State of New York.

8. The New York City Police Department (the “NYPD”) is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the constitutions and laws of the United States and of the State of New York.

9. At all relevant times herein, defendants ESTEBAN ABREU, HENRY ADAMAS, EDWARD McCLAIN AND JANE DOE (collectively the “Individual Defendants”) were police officers employed by the NYPD and each acting in his or her

capacity as agent, servant, and employee of the City.

10. Plaintiff is unable to determine the actual name of Jane Doe at this time and thus sues her under a fictitious name.

11. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the City and otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The Individual Defendants were acting for and on behalf of the City of New York at all times relevant herein with the power and authority vested in them as officers, agents and employee of the City of New York and incidental to the lawful pursuit of their duties as officers, employees and agents of the City of New York.

12. Each of the individual defendants is sued in his or her individual capacity.

STATEMENT OF FACTS

13. In the early morning hours of September 26, 2009, Plaintiff Nathaniel Parks was legally waking in the vicinity of Hewlett Place and Westchester Avenue in the Bronx, going to get something to eat. Because of construction on the sidewalk, Mr. Parks was walking in the street.

14. A black Chevrolet Impala came up behind Mr. Parks and one of the passengers yelled words to the effect of “Get the fuck off the street” at him.

15. Although they did not identify themselves as such, in the car were three NYPD

officers, defendants Abreu, Adamas and Jane Doe.

16. Defendants Abreu and Adamas jumped out of the car and came towards Mr. Parks. They then pushed him, grabbed him and threw him to the ground. When he was face down on the ground, the officers handcuffed Mr. Parks behind his back and then violently dragged him face down by the hood of his sweatshirt to their car, approximately 20 feet away.

17. This actions caused Mr. Parks great pain and resulted in injuries for which he was later treated at Lincoln Hospital Center.

18. The two male officers then lifted Mr. Parks up and shoved him into their car, where he saw Jane Doe for the first time.

19. When Mr. Parks was in the car, the officers taunted him and threatened to assault him and mace him.

20. Mr. Parks was taken by the officers to the NYPD's 41st Precinct and placed in a holding cell.

21. There, NYPD officers took Mr. Parks's cellular telephone, his identification, and the \$230 he had on his person.

22. After about a half hour, Mr. Parks was released from the precinct.

23. Before he left the precinct, a uniformed officer, defendant McClain, gave him a plastic bag with \$130 in it. When he asked for the rest of his money and belongings, he was told to "get the fuck out."

24. Mr. Park's identification was returned later that night to a family member. He never got back his cellular telephone or the rest of his money.

CAUSES OF ACTION

FIRST CAUSE OF ACTION

42 U.S.C. § 1983 Against the Individual Defendants

25. All other paragraphs herein are incorporated by reference as though fully set forth.

26. By assaulting, arresting, detaining and charging Plaintiff, the Individual Defendants engaged under color of law in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983 to be free from excessive force, unreasonable searches and seizures, and false arrest.

SECOND CAUSE OF ACTION

42 U.S.C. § 1983 Against the City of New York

27. All other paragraphs herein are incorporated by reference as though fully set forth.

28. Municipal liability for the violations of Plaintiff's Fourth and Fourteenth Amendment rights rests upon the grounds set forth below.

29. At all times material to this complaint, the defendant City, acting through the NYPD and the Individual Defendants, had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

30. At all times material to this complaint, the defendant City, acting through the

NYPD and the Individual Defendants, had *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise or discipline employees and police officers, and of failing to inform the Individual Defendants' supervisors of their need to train, screen, supervise or discipline said defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

THIRD CAUSE OF ACTION
Pendant State Law Claim
for False Arrest

31. All other paragraphs herein are incorporated by reference as though fully set forth.

32. By the actions described above, the Individual Defendants jointly and severally, violated Plaintiff's rights under New York law to be free from false arrest and imprisonment, as a direct and proximate result of which the Plaintiff suffered the loss of physical liberty.

FOURTH CAUSE OF ACTION
Pendant State Law Claim for
Assault and Battery

33. All other paragraphs herein are incorporated by reference as though fully set forth.

34. By the actions described above, the Individual Defendants jointly and severally violated Plaintiff's rights under New York law to be free from assault, battery and battery committed in performance of public duty or authority, as a direct and proximate result of which the Plaintiff suffered and continues to suffer from physical pain and injury.

WHEREFORE, the plaintiff requests that this Court:

1. Assume jurisdiction over this matter;
2. Award compensatory and punitive damages to Plaintiff against the defendants,
jointly and severally;
3. Award Plaintiff reasonable costs, disbursements and attorney's fees; and
4. Grant any other relief the court deems appropriate.

Dated: New York, New York
February 4, 2011

Respectfully submitted,

Darius Wadia, L.L.C.

/s/

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